



ENGAGEMENT AGREEMENT

This Engagement Agreement (the “Agreement”) is dated on Select date (the “Effective Date) by and between **Tax Alchemy** and **Karla Dennis and Associates Inc.** (the “Companies”) with an address located at 4 Centerpointe Drive, Suite 310 in La Palma CA, and “Name”(the “Client”).

RECITALS

WHEREAS the Client wishes to engage the Companies to provide the services described herein, and the Companies agrees to provide the services for the compensation and otherwise in accordance with the Compensation and Terms contained in this Agreement.

NOW, THEREFORE, in consideration of the foregoing, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, accepted, and agreed to, the Client and Consultant, intending to be legally bound and agree to the terms set forth below.

ARTICLE 1 **ENGAGEMENT AND TERM**

Engagement and Delivery: Client hereby engages Tax Alchemy Inc to represent Client as of the Effective Date and as outlined in the above Recitals. Client also authorizes Companies to retain any other tax professionals, real estate professionals, and legal professional and to share Client’s records and information in order to perform the services outlined in this Agreement. Companies shall safeguard all confidential Client information from unauthorized access, loss, theft, destruction, and the like. No confidential information will be disclosed to third parties without Client’s express written permission.

Purpose: Tax Alchemy and Karla Dennis and Associates Inc. shall provide Client with business and advisory services, tax education relating to strategic tax planning while participating in the Tax Alchemy Private Client Group. Client understands and acknowledges that they cannot guarantee any specific financial results and neither will be liable for any loss, damage or other expense.

ARTICLE 2

SCOPE OF WORK

One-on-One Tax Planning Kick-Off Call: The Client shall receive a one-on-one Private Tax Strategy session with a Licensed Tax Professional.

Lifetime Access to the Tax Alchemy Real Estate Course: The Client shall receive lifetime access to the Tax Alchemy Real Estate Tax Program.

In-Person Mastermind Experience with Karlton and Other Students: The Client and one guest shall receive complimentary access to an in-person Two-Day Conference Meetup with Karlton and other students. Tax Alchemy shall determine the date. Tax Alchemy shall provide the Client reasonable notice of the date of the Mastermind Experience. Should the client decide to attend, The Client and its guest are responsible for arranging and paying for their own travel and lodging accommodations.

Private Slack Channel Access with Tax Strategists: The Client shall have access to a private slack channel with a dedicated tax strategist for **twelve (12) months** from the Effective Date of this Agreement to ask questions and receive exclusive tax advice. Client is limited to four (4) questions per day. Questions should only be asked inside your private slack channel. **** The Tax Professional may not see questions asked outside of your channel. ****

Weekly Office Hours and Tax Strategy Training Sessions: Calls will be conducted and recorded for members of the Private Client Group on Zoom every Monday and Wednesday. Calls may be subject to cancellation, and the Client shall be notified as soon as possible.

Weekly Coaching Calls with Karlton and Private Client Members: Coaching calls are scheduled for the Private Client Group Members every Tuesday. Coaching calls may be subject to change, and the Client shall be provided notice as soon as possible.

Access to Tax Strategy Accelerator Community for Twelve (12) Months: The Client shall have access to a tax strategy accelerator community for **twelve (12) months** from the Effective Date of this Agreement.

2024 Tax Projections and Analysis: The Client shall receive a 2024 tax projection and analysis of its current tax obligations for the 2024 tax year.

2024 Strategic Tax Plan: The Client shall receive a Full Tax Plan, with Strategies and Tax Savings presented to the Client prior to Dec 31st, 2024.

One-on-one Tax Plan Delivery Call with a Licensed Tax Professional: The Client will have a one-on-one Tax Strategy Delivery Call with a Licensed Tax Professional conducted over Zoom.

Entity Formation (WY COPE Included), Entity Vetting, and Review Services: The Client shall receive a complimentary review of all current entities to maximize tax savings and liability protection. Entity Formation is **limited to two (2) Entities**. The Entity shall be an LLC, S-Corp and/or C-Corp ONLY. Karla Dennis and Associates, Inc. will perform this service.

Cost Segregation Analysis: Client shall receive one (1) cost segregation analysis on one Residential or Commercial property under \$1,200,000.00 in purchase price, and/or under 2500 square feet of building square footage, and/or under \$100,000.00 in renovation cost. Properties exceeding these amounts shall be subject to additional fees and will be addressed in a separate engagement agreement.

Prior Year “Missed Opportunity” Tax Analysis: Client shall receive a tax analysis of the “Missed Opportunities” from the Client’s previous tax year.

Four Implementation Calls with a Dedicated Tax Professional: Client shall be entitled to Four Implementation Calls with their dedicated Tax Professional to track tax strategy implementation progress. Calls will be scheduled each quarter over the course of 12 months following the effective date of this agreement.

Real Estate Property Search Discovery Call: The Companies will assist Client with identifying a short-term and or long-term rental property.

Client shall have one year from the Effective Date to utilize the services listed in the scope of work.

PLEASE NOTE: TAX PREPARATION FEES AND SERVICES ARE NOT INCLUDED.

Tax Alchemy and Karla Dennis and Associates will prepare the Client’s Complete Tax Plan, which will rely on documents furnished by the Client. We are not responsible for any losses or harms due to errors or omissions in documents furnished by the Client. If the Client believes there is any additional information that may apply to any of the areas listed or discussed, please advise a dedicated Tax Professional at Tax Alchemy so that we may consider such data. Data not provided will not be considered. **TAX PLANS AND TAX ANALYSIS WILL NOT BEGIN UNTIL ALL DATA IS UPLOADED TO THE PORTAL** We will not audit or independently verify any data submitted. However, we may ask you to clarify certain information or provide additional data.

Please initial you have reviewed the above:

 Initials

ARTICLE 3 **COMPENSATION AND TERMS**

Compensation for Services and Terms: Participation in the Tax Alchemy Private Client Group for the stated term will be **thirty-two thousand (\$32,000.00) dollars** (the “Fee”). Payment shall be made by ACH and or auto debit , automatically drafted when signing the agreement. This agreement will not take effect, and Companies will not begin services, until: (a) Client signs this agreement, and (b) Client pays the complete fee.

Please initial you have reviewed the above:

 Initials *

Deposit Payments: The client will pay a deposit of three thousand (\$3,000.00) in order to secure their spot in the Tax Alchemy. The deposit fee is a non-refundable, non-transferable payment, and reserves the client’s spot in the program described here in. By signing this agreement, the client expressly recognizes and agree that Tax Alchemy has agreed to reserve the client’s spot in the program for the date listed, and because a cancellation by client would be preclude Tax Alchemy from filling that spot with another client Tax Alchemy would suffer damages in an amount that is difficult or impossible to reasonably estimate at the time of entering into this agreement.

Late Payments: If a debit/credit card declines, an overdue payment shall bear a five percent (5%) one-time late charge.

Non-Payment for Services: Fees for any additional services not covered under the Tax Alchemy Private Client Group are **due no later** than seven (7) days before work is performed. Non-payment will cause Companies to stop or place a hold on the scope of work until the Client becomes current. Tax Alchemy and Karla Dennis and Associates may require advance payment if the Client failed to miss payments more than two times. Furthermore, Companies reserves the right to terminate the Agreement without any further obligation after 15 days of non-payment status, or failure to comply with agreed fees for payment for services.

Payments will be automatically drafted, and a receipt will be sent for each, in the amount of thirty-two thousand (\$32,000.00) dollars.

Total due \$32,000.00

Renewal of Agreement: This Agreement shall be auto-renewed twelve (12) months after the Effective Date. The Agreement shall renew at twelve hundred (\$1200.00) dollars per month. Client agrees that the auto renewal is for a twelve-month contract, and the Client will be billed in monthly installments. The credit card on file will be billed on the 15th day of every month. Tax Alchemy will send 60 day’s notice to the Client prior to the renewal. The Client must cancel the Agreement by giving a written notice 30 days before the renewal date. If the Agreement is not canceled, the Client acknowledges they are responsible for **twelve (12) payments** of twelve hundred (\$1200.00) dollars. Renewal shall include: Slack Channel Access, Coaching calls, Tax Strategy Accelerator Community Access, Four Implementation Calls, Strategic Tax Plan for that specific year with 1 revision. **Please initial here :**  Initials *

ARTICLE 4 **REFUNDS**

Refunds: Upon the signing of this agreement, Client understands that the fees are only refundable if the amount invested (\$32,000.00) with Tax Alchemy outweighs the tax savings after implementing all strategies recommended by the companies within the twelve (12) month Agreement.

Please initial you have reviewed the above:

 Initials *

ARTICLE 5 **COOPERATION**

Mutual Cooperation: The parties agree to cooperate with each other in the performance of their respective duties and obligations herein.

Client Responsibility: Time frame for providing data is crucial with time sensitive matters. Any data requested by Companies is essential for the fulfillment of the Scope of Services. Failure to do so will delay the Scope of Work and delivery of Services.

Taxing Agency Notices: When applicable, clients must notify Companies within 48 hours of any notices received from any taxing authority if it is related to the Scope of Work prescribed herein.

Timing of Delivery: It is imperative to note the timing and delivery of the work product is subject to you providing us all of your information in a timely manner. We request that data be returned to us within 48 hours of the request. Time frame of providing data is crucial with time sensitive matters. Any data requested by the Companies shall be provided in accordance with the deadlines set. Failure to do so by the Client may affect the Scope of Work, and the Companies shall not be held liable for any adverse outcome as a result of the Client's lack of responsiveness.

ARTICLE 6 **CONSULTANT DISCRETION**

Business Judgment: Companies shall, as an independent entities, exercise the sole right to determine the manner in which it carries out the objectives of this Agreement. All services shall be performed in accordance with State and Federal Laws.

ARTICLE 7 **DISCLAIMER, NO LIABILITY AND INDEMNIFICATION**

Disclaimer of Warranties: Notwithstanding anything to the contrary in this Agreement, Companies disclaim all warranties, express or implied, including the implied warranties of the merchantability, fitness for a particular purpose and non-infringement, with respect to their Services. Companies make no representations or warranties as to the quality, suitability, or adequacy of the Services for any purpose or use.

No Liability: Client acknowledges that Companies' performance of services pursuant to this Agreement will not subject Companies, their respective members, stockholders, managers, directors, officers, employees or agents to any liability whatsoever, except as directly caused by the willful misconduct or gross negligence on the part of either Companies, its respective members, stockholders, managers, directors, officers, employees or agents. Company's liability as a result of any willful misconduct or gross negligence will be limited to the amount of compensation it has actually received from Client.

Indemnification: Client agrees to indemnify and hold harmless Tax Alchemy and Karla Dennis and Associates Inc., each member and their respective members, stockholders, managers, directors, officers, employees and agents with respect to any claims or liabilities which may be asserted or imposed against Companies or such persons as a result of the actions or inactions by Companies, either pursuant to this Agreement or its business activities. In the event that either party must enforce the terms of this agreement, the prevailing party shall be entitled to recover their reasonable costs and attorney fees incurred in enforcing the agreement.

ARTICLE 8

MISCELLANEOUS

Entire Agreement: This writing represents the entire agreement and understanding of the parties with respect to the subject matter hereof and may not be altered or amended except by an agreement in writing signed by both Companies and Client. The Services are to be rendered in accordance with the Scope of Work stated in the first page of this Engagement Agreement.

Governing Law: This Agreement and the performance hereof shall be governed, interpreted, and construed in accordance with the laws of the State of California. This agreement is deemed entered into in Orange County, California, and the parties agree that Orange County shall be the exclusive and proper venue for any action related to this agreement.

Notice: Notices authorized or required to be sent pursuant to this Agreement shall be in writing and sent postage prepaid, by United States certified or registered mail, return receipt requested, directed to the other party at its address set forth above or as may be designated by notice from time to time.

Waiver of Breach: The waiver of either party of a breach of any provision of this Agreement shall not operate nor be construed as a waiver of any subsequent breach thereof.

Mediation: In the event of any dispute, claim or controversy arising out of or relating to this Agreement (“Dispute”), the parties agree to first participate, in good faith, in mediation. The mediation shall take place at a time and location agreed upon by the parties. Upon written notice to mediate by either party (“Notice to Mediate”), the parties shall have seven (7) days to mutually agree upon a mediator or agree to mediate the issue amongst themselves (without a mediator). Mediation shall be completed within 30 days from the Notice to Mediate. All issues resolved through the mediation shall be reduced to writing and thereafter be binding as provided therein. In the event the Dispute is not fully resolved through Mediation or the parties do not mediate within 30 days from the Notice to Mediate, the parties shall resolve the Dispute by way of binding arbitration.

Binding Arbitration: In the event of any dispute, claim or controversy arising out of or relating to this Agreement (“Dispute”) is not fully resolved through Mediation (as stated above); the parties shall remit the Dispute to a professional arbitration service to be resolved pursuant to binding arbitration before a single arbitrator. The professional arbitration service shall be selected by Tax Alchemy, Inc.TM with an arbitrator acceptable to the parties (as stated herein). One or both parties providing written notice to the other party (“Request to Arbitrate”) may initiate the binding arbitration. Within ten (10) days from Tax Alchemy, Inc.TM receipt of the Request to Arbitrate or within 10-days from Companies Request to Arbitrate, Tax Alchemy inc.TM shall choose a professional arbitration service (“Notice of Selection of Arbitration Service”). Companies shall provide the written Request to Arbitrate and Notice of Selection of Arbitration Service to all parties and the professional arbitration service. In the event the parties are unable to mutually agree on a single arbitrator within twenty (20) days from the date of receipt of the Request to Arbitrate and Notice of Selection of Arbitration Service by the professional arbitration service. The professional arbitration service shall designate an arbitrator within ten (10) days from written request by either party. Any fee to initiate the arbitration shall be equally split between the parties. The arbitration fees and costs, including the initiation fee ultimately shall be borne by one or both parties as determined by the arbitrator. The arbitrator shall be authorized to provide all recognized remedies available in law or equity for any cause of action that is the basis of the arbitration, if the arbitrator shall not have the authority to award punitive damages and the arbitrator may not award specific performance. The award rendered by the arbitrator shall be deemed a final judgment. Notice: the dispute resolution procedures provide for all disputes to be decided by neutral arbitration as provided by the Federal Arbitration Act and the parties are giving up any rights they might possess to have the dispute litigated in a court by a judge or a jury. The parties are giving up their judicial rights to discovery and appeal, unless those rights are specifically included in the binding dispute resolution procedures provisions. If a party refuses to submit to binding arbitration after agreeing to this provision, he or she may be compelled to arbitrate by a court of law. Each party’s agreement to this arbitration provision is voluntary. The parties have read, understand, and agree to submit any Dispute to the provisions of the Mediation and Binding Arbitration provisions of this Agreement.

Signature page to follow.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first above written.

(“Client”)
By: _____
Client name

Date _____

 Signature

Signature

Tax Alchemy (“Company”)

By: Karlton Dennis

Date _____

Signature

ACH/WIRE INFORMATION

If you are paying Via ACH/ WIRE PLEASE SEND PAYMENT TO:

Business Name: Tax Alchemy

Bank: Chase

Business Address: 4 Centerpointe Dr STE 310 La Palma CA 90623

Phone : 714-315-4128

Account #856989758

Routing #322271627